

FL-24-002050 GILL VS GILL

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-07-30

Motion: a) Petitioner's Request for Order re Motion to Compel Discovery, etc.—HEARING REQUIRED; b) Respondent's Request for Order re Bifurcation, etc.—HEARING REQUIRED. a) No Responsive Declaration or other opposition has been filed by Respondent or Respondent's counsel. Absent appearance and either demonstration that code-compliant responses have been served in response to Petitioner's motion, or a showing of good cause that circumstances render the imposition of discovery sanctions moot, the Court is inclined to grant the motion as unopposed and to order that responses, without objections, be served within ten (10) days of this ruling. The Court is inclined to reserve jurisdiction over sanctions subject to demonstrated compliance with discovery and the absence of further disputes. In the alternative, if the parties and their counsel are so inclined, the Court will entertain any requests to have this dispute referred for an Informal Discovery Conference. The request to continue the trial date will be addressed in the Court's discretion at the hearing and in light of the Respondent's fulfillment of discovery obligations. b) Joinder of all pension plans is a threshold requirement to bifurcation and early termination of marital status. Petitioner's counsel represents that some or all of Respondent's pension plans have not been "properly" joined. Counsel are invited to appear and apprise the Court as to whether this is or is not the case. Provided that there are no issues with plan joinder, or any defects are correctible, then the Court is inclined to grant the request as termination of marital status pendente lite is favored by public policy and Petitioner's other concerns are all easily addressed by the "protective conditions" that the Court may grant and impose in the attachment to the "status-only" judgment that results from granting termination of marital status. (Fam. Code, § 2337; Cal. Rules of Ct., rule 5.390; Gionis v. Superior Court (1988) 202 Cal.App.3d 786, 789-790 [due to public policy in favor, moving party carries the burden with only "slight" evidence whereas opposing party must demonstrate "compelling" evidence of irreparable harm or prejudice]; see, Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 11-D, § 11:479.1-11:479.3 [noting the impact of the "vast array" of protective conditions available to alleviate prejudice to the non-moving party].) The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

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